

s schede di tre soggetti nella stessa mail, come già evidenziato”;

“l’Ente ha avviato un’analisi interna per verificare le modalità di invio delle comunicazioni di valutazione delle performance e per adottare ulteriori misure di sicurezza al fine di evitare il ripetersi di simili incidenti”.

3. Considerazioni del Garante.

Il Garante, esaminati gli atti e le memorie presentate, ritiene che la condotta del Comune di Napoli, consistente nell’invio con un’unica email delle schede di valutazione delle performance di più dipendenti, costituisca una violazione degli artt. 5, par. 1, lett. a), e 6 del Regolamento, nonché dell’art. 2-ter del Codice. In particolare, il Garante osserva che:

- l’invio delle schede di valutazione a più destinatari, senza il consenso degli interessati, ha comportato una diffusione non autorizzata di dati personali, in violazione del principio di liceità e correttezza del trattamento;
- la comunicazione dei dati personali relativi alla performance professionale della reclamante, avvenuta dopo la cessazione del servizio, non risulta giustificata da alcuna necessità legata alle finalità del trattamento, rendendo la condotta del Comune inadeguata rispetto alle disposizioni normative vigenti.

4. Provvedimento.

Pertanto, ai sensi dell’art. 58, par. 2, lett. b) del Regolamento, il Garante ordina al Comune di Napoli di:

- adottare misure correttive per garantire che in futuro le comunicazioni relative alle valutazioni delle performance siano effettuate nel rispetto delle disposizioni di legge, evitando l’invio di dati personali a più destinatari senza il consenso degli interessati;
- fornire al Garante, entro 30 giorni dalla notifica del presente provvedimento, un rapporto dettagliato sulle misure adottate per conformarsi a quanto prescritto.

Il presente provvedimento è notificato al Comune di Napoli e pubblicato sul sito web del Garante.

Roma, 1° giugno 2023

IL GARANTE

Pasquale Stanzione

****3. Outcome of the Investigative Activity.****

The regulation on the protection of personal data provides that public entities, within the work context, may process the personal data of the data subjects, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Articles 2-ter and 2-sexies of the Code).

European legislation provides that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation concerning processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]" (Article 6, paragraph 2, of the Regulation). In this regard, it is highlighted that the operation of communicating personal data to third parties by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (see Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the events subject to the complaint).

The data controller is required, in any case, to respect the principles regarding data protection, including that of "lawfulness, fairness, and transparency" as well as "data minimization," according to which personal data must be "processed lawfully, fairly, and transparently in relation to the data subject" and "adequate, relevant, and limited to what is necessary in relation to the purposes for which

they are processed" (Article 5, paragraph 1, letters a) and c), of the Regulation).

In this context, it is noted that, as emerged from the outcome of the investigation related to the complaint, the Municipality, on date XX, sent in a single email, addressed to the complainant and two of their former colleagues, their evaluation sheets related to the last year of service, along with the ranking with the score obtained, thus allowing the three recipients of that email to become aware of their respective personal data, including that contained in the documents in question, as well as their personal email addresses.

In this regard, it should be noted that on numerous occasions the Authority has declared the unlawfulness, due to the absence of a legal basis, of the communication to third parties of personal data contained in the evaluation sheets of employees (see, in particular, decisions of December 5, 2013, nos. 545 and 546, web doc. nos. 2894559 and 2896275).

More generally, according to the established orientation of the Authority (see decisions of April 28, 2022, no. 146, web doc. no. 9776406; July 31, 2014, no. 392, web doc. no. 3399423; October 3, 2013, no. 431, web doc. no. 2747867; May 8, 2013, no. 232, web doc. no. 2501216; October 18, 2012, no. 296, web doc. no. 2174351 and no. 297, web doc. no. 2174582), personal data of employees, processed for the purposes of managing the employment relationship, cannot, as a rule, be disclosed to parties other than those who are part of the specific employment relationship (see the definitions of "personal data" and "data subject," contained in Article 4, paragraph 1, no. 1), of the Regulation), or to those who - also taking into account the definition of "third party," contained in Article 4, paragraph 1, no. 10), of the Regulation - are not authorized to process them, due to the duties assigned and the organizational choices of the data controller. This is because making data available to parties who, although part of the data controller's organization, cannot be considered "authorized" to process them (see Articles 4, no. 10, 28, paragraph 3, letter b), 29, and 32, paragraph 4, of the Regulation, as well as Article 2-quaterdecies of the Code), due to the role they play and the functions exercised within that organization, may result in a communication of personal data in the absence of a legal basis (see points 2, 4, 5.1, and 5.3 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector," of June 14, 2007, web doc. no. 1417809).

In this specific case, the Municipality stated that the sending of the evaluation sheets, via a single email addressed to the three concerned former employees (who are formally no longer part of the data controller's organization, as they are former employees), was due to a mere human error. Therefore, considering that there is a lack of a legal basis that could justify the conduct carried out (see Article 6, paragraph 1, letters c) and e) of the Regulation), it must be concluded that the Municipality, albeit by mistake, has carried out a communication of personal data relating to the complainant and two other data subjects, in a manner not compliant with the principle of lawfulness, fairness, and transparency. transparency and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint).

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – although worthy of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Municipality is noted, for having communicated the personal data of the complainant and two other interested parties to third parties, in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint).

The violation of the aforementioned provisions makes the administrative sanction provided for by

Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also recalled by Article 166, paragraph 2, of the Code. In this context, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures provided for by Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, it has been considered that, although due to human error, the communication in question has resulted in the mutual awareness of the evaluations received regarding the work activity, or of information with respect to which the interested parties had a high expectation of confidentiality in the reference context, potentially impacting their reputation even after the termination of the employment relationship. It has also been taken into account that the data controller is a Municipality with over three million inhabitants, which should have an organizational structure and resources sufficient to ensure an adequate level of compliance with data protection regulations, including through specific training activities aimed at those authorized to process data, in order to mitigate the risk of similar cases occurring as those subject to the complaint. Furthermore, it has been considered that, on the other hand, the violation involved a limited number of interested parties, amounting to three; that the event appears to have been isolated and due to a mere human error; that the processing did not concern particular categories of data (cf. Article 9 of the Regulation) and did not involve the knowledge of other specific circumstances related to the family or personal conditions of the interested parties; that the conduct occurred in the context of the SARS-CoV-2 epidemiological emergency, particularly hectic and critical also in terms of the organization and management of institutional activities (deferrable and non-deferrable), considering, moreover, that, as stated by the Municipality, the Office in which the violation occurred operated with a limited and insufficient staff; that the Municipality has stated that it had taken initiatives prior to the occurrence of the facts subject to the complaint aimed at reducing the risk of violation of personal data; that the Municipality has cooperated proactively during the investigation. Finally, there are no previous relevant violations committed by the data controller or previous measures under Article 58 of the Regulation, relating to cases similar to those subject to the complaint.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €3,000 (three thousand) for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as 2-ter of the Code.

(in the text prior to the amendments made by

Decree-Law No. 139 of October 8, 2021, in force at the time of the facts subject to complaint), as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the facts subject to communication concerned assessments on the work activity

carried out by the parties involved, it is also believed that the accessory sanction of publication on the Garante's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Garante's Regulation No. 1/2019, should be applied.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Naples for violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation, as well as Article 2-ter of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021, in force at the time of the facts subject to complaint), in the terms indicated in the reasoning;

ORDERS

the Municipality of Naples, represented by the legal representative pro tempore, with registered office at Palazzo San Giacomo - Piazza Municipio - 80133 Naples (NA), Tax Code 80014890638, to pay the sum of three thousand euros (€3,000) as an administrative monetary sanction for the violations indicated in the reasoning.

It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Municipality, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of three thousand euros (€3,000) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the Garante's website, believing that the conditions referred to in Article 17 of the Garante's Regulation No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 1, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei